

1 ENGROSSED HOUSE
2 BILL NO. 3759

By: Turner of the House

3 and

4 Hamilton of the Senate
5
6

7 An Act relating to revenue and taxation; amending
8 68 O.S. 2021, Section 3020, which relates to
9 temporary appropriations of local government
10 entities; requiring temporary allocations to school
11 districts to be set by prescribed date; and
12 providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 68 O.S. 2021, Section 3020, is
15 amended to read as follows:

16 Section 3020. A. The excise boards of the various counties in
17 the state may convene at any time after the beginning of any fiscal
18 year, upon call of the chairman of the board, for the purpose of
19 approving temporary appropriations for the counties, cities, school
20 districts and other municipal subdivisions of the state. Whenever
21 the governing board of any such county, city, school district or
22 other municipal subdivision of the state shall present to the excise
23 board of such county or of the county in which any such city, school
24 district or other municipal subdivision is located in whole or in

1 part, a verified application showing that the needs of such county,
2 city, school district or other municipal subdivision so require,
3 such excise board may make temporary appropriations for lawful
4 current expenses of such county, city, school district or other
5 municipal subdivision.

6 B. Warrants or checks may be drawn against such temporary
7 appropriations pending action by the excise board upon the annual
8 estimate of needs and budget of such county, city, school district
9 or other municipal subdivision for such fiscal year. The amount
10 which may be appropriated by such temporary appropriations shall in
11 no event exceed the entire amount which the governing board, making
12 the application, estimates will be available for the entire fiscal
13 year for each purpose for which a temporary appropriation is
14 requested; provided, however, the limitation on appropriations and
15 any requirement for request or approval of temporary appropriations
16 shall not apply to any city or town if the revenue from the ad
17 valorem tax to the municipal general fund amounted to less than five
18 percent (5%) of the total revenues accruing to the municipal general
19 fund during the prior fiscal year. Such cities and towns may pay
20 for lawful current expenditures pursuant to the estimate of needs as
21 filed by the city or town and pending final action of the excise
22 board.

23 C. Any such temporary appropriations so approved by the excise
24 board of any county shall, when the annual budget for such county,

1 city, school district or other municipal subdivision is finally
2 approved, be merged in the annual appropriations for the same
3 purposes and any warrant which has been, in the meantime, drawn
4 against such temporary appropriations shall be charged against the
5 final approved annual appropriations of such county, city, school
6 district or other municipal subdivision for the said current fiscal
7 year. All temporary allocations for school districts shall be set
8 prior to June 30 of the current fiscal year.

9 SECTION 2. This act shall become effective November 1, 2026.

10 Passed the House of Representatives the 11th day of March, 2026.

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13 Presiding Officer of the House
14 of Representatives

15 Passed the Senate the ____ day of _____, 2026.

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18 Presiding Officer of the Senate
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